

26VECV00284 26VECV00284

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-06-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C06%2F24%2F2026

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Case Number: 26VECV00284 Hearing Date: June 24, 2026 Dept: T

26VECV00284 Nazari v Liberty Canyon

[TENTATIVE] ORDER: Plaintiff Sarah Nazari's Motion to Disqualify Counsel for Defendants Liberty Canyon Townehome Owners Association, William Ferrier, and Pamela Rowe is DENIED.

Introduction

Plaintiff Sarah Nazari (Plaintiff) moved to disqualify Attorney Elmira Tofanyan (Tofanyan) and law firm of Kulik Gottesman Siegel & Ware LLP (KGSW) (collectively Law Firm) from representing Defendant Liberty Canyon Townehome Owners Association, William Ferrier, and Pamela Rowe (collectively, Defendants HOA).

Discussion

Plaintiff argued that a conflict as to Law Firm's duty of loyalty exists because of Law Firms concurrent representation of Defendants HOA in the Instant Action and representation of Non-Parties Lordon Enterprises Inc. (Lordon), Donalea Bauer (Bauer), and Shelby Wagner (Wagner) (collectively, Property Manager) in a separate and independent action filed in this Court, Perrin Davidson, Sarah Nazari v. Lordon Enterprises Inc., Donalea Bauer, Shelby Wagner (Super. Ct. County of Los Angeles, pending, 23VECV01940) (First Action). Defendants HOA in the Instant Action are represented by KGSW, Leonard Siegel, and Tofanyan. Property Managers in the First Action are represented by KGSW, Leonard Siegel, and Samantha Johnson.

Preliminarily, Plaintiff's standing to raise the disqualification motion was placed into issue. Standing generally requires that the moving party be able to allege injury, that is, an invasion of a legally protected interest. (Angelucci v. Century Supper Club (2007) 41 Cal.4th 160, 175.) A "standing" requirement is implicit in disqualification motions. Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney. (Strasbourger Pearson Tulcin Wolff Inc. v. Wiz Technology, Inc. (1999) 69 Cal.App.4th 1399, 1404 (Strasbourger).) Absent an attorney-client relationship, the moving party must have an expectation of confidentiality. (DCH Health Services Corp. v. Waite (2002) 95 Cal.App.4th 829, 832 (DCH).) "Before an attorney may be disqualified from representing a party in litigation because his representation of that party is adverse to the interest of a current or former client, it must first be established that the party seeking the attorney's disqualification was or is "represented" by the attorney in a manner giving rise to an attorney-client relationship." (Civil Service Comm'n v. Superior Court (1984) 163 Cal.App.3d 70, 76-77 (Civil Service).) Plaintiff argued that the Civil Service case is distinguishable from the instant issue because two different duties are at issue. The Civil Service case reviewed the duty of confidentiality and the instant action raises the duty of loyalty. However, the Strasbourger, DCH, and Civil Service cases all provide that an attorney-client relationship must have existed or an expectation of confidentiality must have existed. Plaintiff failed to present any facts as to any attorney-client relationship with Law Firm or any expectation of confidentiality from Law Firm.

Instead, Plaintiff argued that the instant issue is not of confidentiality but of loyalty. (Flatt v. Superior Court (1994) 9 Cal.4th 275 (Flatt).) However, Plaintiff's reliance upon Flatt is misplaced because the facts between Flatt and the instant action are distinguishable. In the instant motion, Plaintiff only alleged a duty of loyalty between Law Firm and Defendant and Law Firm and Property Manager. The two relationships do not involve Plaintiff. Plaintiff did not assert/argue that Plaintiff is owed any duty of loyalty by Law Firm. Without any attorney-client relationship, there is no duty of loyalty owed by Law Firm to Plaintiff. Duties of loyalty in this motion are held by Defendant and Property Manager. It is Defendant and Property Manager who holds a legally cognizable interest in protecting. In Flatt, the duty of loyalty involved the duty owed to a former client and the duty that would be owed to a prospective client. It is the interest of these two "clients" that were allegedly adverse and/or in conflict. In this motion, Plaintiff cannot show any duty of loyalty being owed by Law Firm to Plaintiff. Without any duty of loyalty owed to Plaintiff, Plaintiff's contentions are unpersuasive.

Further, the Court does not recognize that the two duties to be distinct. Plaintiff failed to present legal authority to support their contention that the two duties are distinct. Both duties are owed by attorneys to current or former clients, which Plaintiff is not. Both appear to hold equal weight as to duties owed to current or former clients. The Court is not convinced that the alleged difference in duties is sufficient to distinguish the opinions in Civil Service, DCH, or Strasbourger.

Plaintiff further argued that there is no case law that holds that only a current/former client may bring a disqualification motion. Plaintiff cited *Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal. App.4th 969, 980-981 (Meza) to argue that non-clients can bring disqualification motions. However, Plaintiff misconstrues the facts in the Meza case. In Meza, defendant Lucent Polymers, Inc. (Lucent), with other defendants, moved to disqualify plaintiff Teresa Meza's counsel. The Court opined that defendant Lucent, with the other defendants, had standing to disqualify because the targeted law firm, Metzger Law Group, hired Attorney Brett Drouet. Mr. Drouet previously represented one of the other defendants. Mr. Drouet switched sides from defense to prosecution. The Court of Appeal opined that Lucent had standing to bring the disqualification motion even though Drouet did not represent Lucent. The Court of Appeal opined that Lucent had standing to bring the disqualification motion based upon the common interest doctrine – the common interest between Lucent and the other defendant who was represented by Mr. Drouet. Although the Court of Appeal also opined that Lucent lacked an attorney-client relationship with Drouet, the common interest doctrine showed that Lucent and the other non-client defendants had an interest in protecting confidential attorney work product. (Ibid.) Plaintiff failed to present any attorney-client relationship with Law Firm or that Plaintiff had any common interest with Defendant or Property Manager to show Plaintiff having a legally cognizable interest in protecting. Plaintiff's reliance on Meza is unpersuasive. Plaintiff failed to present any legal authority to support the contention that a non-client or a person without any legally cognizable interest to protect can bring a disqualification motion. Plaintiff's disqualification motion is unpersuasive because Plaintiff lacks standing.

Without standing, Plaintiff's remaining arguments (i.e., non-waivable conflict, prejudice, and inability to cure by consent) are MOOT.

The motion for disqualification is DENIED.

[Tentative] Order: Ex parte application to dismiss complaint:

CRC 3.1320 allows a party to seek, by ex parte application, dismissal and entry of judgment after expiration of time to amend following the sustaining of a demurrer. The court granted 20 days leave to amend the first cause of action. The clerk was ordered to give notice. The clerk gave notice by electronic service which adds 2 days to the 20 days leave to amend. 22 days after 5/19/2026 was 6/10/2026. The amended complaint was served and filed on 6/11/2026. The Declaration of Mr. Davidson is insufficient to show excusable neglect. Therefore, the amended complaint was filed late, is stricken, the demurrers were sustained as to both causes of action of the complaint, and there was no leave to amend after 6/10/2026. Accordingly, the case is dismissed with prejudice. Defense to serve and file a proposed judgment of dismissal.

"CRC 3.1320(h) Ex parte application to dismiss following failure to amend

A motion to dismiss the entire action and for entry of judgment after expiration of the time to amend following the sustaining of a demurrer may be made by ex parte application to the court under Code of Civil Procedure section 581(f)(2)."